

**UNIVERSITY OF CAGLIARI**  
**Extended Privacy Notice on the Processing of Personal Data through**  
**Video and Photographic Recording**  
**HEAT Project – Pilot XR Theater**

*Notice provided pursuant to Art. 13 of Regulation (EU) 2016/679 (“GDPR”)*

## **Preamble**

This notice describes the processing of personal data carried out through video and photographic recordings made during the Quality of Experience (QoE) assessment activities of the Pilot XR Theater, conducted within the scope of the HEAT project (EU funded research project under HORIZON Research and Innovation Actions Next Generation eXtended Reality – Project 101135637).

This notice is addressed to participants, guests and persons accessing the premises in which recordings may take place. A summary notice is posted at the entrance to the premises indicating the presence of recordings for promotional and dissemination purposes of the project.

The completion of QoE questionnaires is carried out anonymously and is not linked to video or photographic recordings. Questionnaires must not contain first name, last name, contact details, student ID, account, personal codes or other elements capable of directly or indirectly identifying the participant.

## **1. Data Controller and Data Protection Officer**

|                                      |                                                                                                                                                                                                       |
|--------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Data Controller</b>               | University of Cagliari Via Università, 40 - 09124 Cagliari<br>Email: <a href="mailto:privacy@unica.it">privacy@unica.it</a> PEC: <a href="mailto:protocollo@pec.unica.it">protocollo@pec.unica.it</a> |
| <b>Reference Department</b>          | Department of Electrical and Electronic Engineering Scientific<br>Coordinator of the Pilot: Prof. Maurizio Murrone                                                                                    |
| <b>Data Protection Officer (DPO)</b> | Email: <a href="mailto:dpo@unica.it">dpo@unica.it</a> PEC: <a href="mailto:protocollo@pec.unica.it">protocollo@pec.unica.it</a>                                                                       |

## **2. Joint Controllers and Parties Involved**

For certain activities of the Pilot, the University of Cagliari acts as joint controller pursuant to Art. 26 GDPR together with the project partners, each within the limits of their respective areas of competence. In particular:

- Immersion S.A.S. (France): development and management of the application platform based on the Unity engine, integrating the technical streams required for the delivery of the immersive experience.
- i2CAT Foundation / Holomit (Spain): streaming distribution of the theatrical content and possible processing of technical session metadata, to the extent necessary for service management.
- FACHHOCHSCHULE ZENTRALSCHWEIZ – HOCHSCHULE LUZERN – HSLU (Switzerland): video acquisition and processing of the theatrical content, aimed at 3D rendering and the creation of graphic assets required for the implementation of further variants of the immersive experience.
- University College Dublin – UCD (Ireland): development and management of the olfactory dispensing system synchronised with the experience.

- University of Padova: scientific support for the Quality of Experience assessment. As the questionnaires are anonymous, the responses do not constitute personal data attributable to participants; any further activities involving personal data are governed by the project agreements.
- Sardegna Teatro: provider of the artistic content relating to the theatrical performance “Dìsigiu”; does not process participants’ personal data within the scope of the Pilot.

The joint controllers jointly determine the purposes and means of the processing necessary for the implementation of the Pilot and define, by means of an agreement pursuant to Art. 26 GDPR, their respective roles, responsibilities and relationship with data subjects. The essential elements of the agreement are made available upon request, within the limits provided by applicable law.

### 3. Context of the Activity

The HEAT project involves research, experimentation, communication and dissemination activities relating to immersive and multisensory experiences. Within the Pilot XR Theater, participants take part in an XR experience and, separately, may complete anonymous questionnaires aimed at evaluating the quality of the experience.

During certain phases of the activity, video and photographic recordings may be made to document and promote the HEAT project, its activities, results and dissemination initiatives. Recordings will be made, where possible, favouring wide-angle shots and approaches respectful of the dignity, privacy and freedom of the persons present.

No biometric processing, facial recognition, profiling or automated decision-making is envisaged. XR headsets and other devices used for the experience are not used, in the context of this promotional activity, to identify participants or to collect biometric data.

### 4. Personal Data Processed

The following data may be processed, to the extent necessary for the purposes set out in this notice:

- images and video recordings of participants, guests and persons present on the premises, where they are identifiable;
- any common identifying data strictly necessary for the management of specific authorisations or releases, where required;
- any data relating to the role or institutional/project affiliation of the persons recorded, where such information is necessary to accurately describe the documented activity;
- any voice or statement given to camera only in the case of interviews, testimonials or individual contributions, which will be collected following specific information and, where necessary, specific authorisation.

The University does not intend to process special categories of personal data pursuant to Art. 9 GDPR. Recordings will be organised so as to avoid the unnecessary collection of details or information exceeding the purposes of communication and promotion of the project.

### 5. Data Not Processed in the QoE Assessment

The questionnaires relating to the quality of the experience are anonymous and are kept separate from the recordings. No association is envisaged between questionnaire responses and images, videos or other elements that could identify the participant.

Identifying data or unnecessary personal information must not be entered in the questionnaires. Any responses that spontaneously contain unnecessary personal data may be deleted, redacted or disregarded in subsequent analysis activities.

## 6. Purposes of Processing

Images and video recordings may be processed exclusively for institutional, promotional, informational, dissemination and communication purposes of the HEAT project, including:

- documentation of the project's activities and related pilots;
- institutional communication and promotion of the project, its activities and results;
- preparation of informational, dissemination, promotional and reporting materials;
- publication on the HEAT project website, on the institutional website and channels of the University of Cagliari and, where relevant, on the communication channels of the project partners;
- use in presentations, events, conferences, reports, project deliverables, press materials and scientific or institutional communication content.

Any use incompatible with the purposes indicated above, detrimental to the dignity of the persons recorded, or of a commercial nature unrelated to the project is excluded.

## 7. Legal Basis for Processing

For recordings and images of adult participants, the processing is carried out, as a rule, in the context of the performance of a task in the public interest pursuant to Art. 6(1)(e) GDPR, connected to the institutional purposes of the University and to the activities of research, public engagement, communication and dissemination of project results.

Where the processing concerns individual recordings, interviews, testimonials, close-ups or uses requiring specific authorisation, consent or a specific release may be requested pursuant to Art. 6(1)(a) GDPR. Any consent given may be withdrawn at any time, without prejudice to the lawfulness of the processing carried out prior to withdrawal.

The processing will not concern, under any circumstances, minors.

## 8. Methods of Processing

Recordings may be made using video cameras, photographic cameras or other audiovisual devices operated by authorised staff or by authorised third parties. Selection, editing, storage and publication operations will be carried out in compliance with the principles of lawfulness, fairness, transparency, data minimisation, purpose limitation, accuracy, storage limitation, integrity and confidentiality.

No covert recordings will be made. The presence of recordings will be indicated by a sign posted at the entrance to the premises and, where appropriate, by additional verbal or written notices. Recordings will be made, where possible, favouring wide-angle shots, avoiding unnecessary details and respecting any expressions of objection.

## 9. Provision of Data and Right to Object to Recording

Participation in the project activities is voluntary. Processing through video and photographic recordings is connected to the communication and promotion purposes of the project, but completion of anonymous QoE questionnaires does not require the identification of the participant and is not conditional on the publication of their image.

An adult participant who does not wish to be recorded or does not wish their image to be used in promotional materials may notify the staff in charge before or during the activity. Staff will be able to indicate, where available, unrecorded areas or organisational arrangements suitable for avoiding identifiable recordings.

If, for technical or organisational reasons, it is not possible to guarantee complete exclusion from recordings in a given area, staff will inform the person concerned, who may choose whether to access or remain in the area subject to recording.

## 10. Authorised Persons and Recipients of Data

Personal data may be processed exclusively by staff of the University of Cagliari and by collaborators or persons appointed, authorised and duly instructed in accordance with applicable law.

Data may also be processed, to the extent necessary for the purposes indicated, by external parties involved in technical implementation, editing, content management, communication, event organisation, publication on the project website or management of IT infrastructure. Such parties act, as the case may be, as data processors pursuant to Art. 28 GDPR, independent controllers or joint controllers, in accordance with the applicable agreements and notices.

Where images or videos are shared with HEAT project partners for communication and dissemination purposes, processing will take place within the limits of their respective project responsibilities and the purposes set out in this notice.

## 11. Dissemination and Publication

Images and videos, if lawfully acquired, may be disseminated by publication on:

- the HEAT project website;
- the institutional website and channels of the University of Cagliari;
- institutional and scientific communication channels of the project, including any social media channels;
- informational, promotional, dissemination materials, presentations, reports, deliverables, press releases and content relating to project events or initiatives.

Publication will take place in a manner consistent with the declared purposes and in ways respectful of the dignity of the persons recorded. The University reserves the right not to publish or to remove images and videos where reasons emerge for the protection of the data subject or inconsistency with institutional purposes.

## 12. Transfers to Third Countries

Recordings and audiovisual materials are processed, as a rule, within the European Economic Area. No direct transfers to third countries or international organisations by the University are envisaged, unless this is necessary for specific services or platforms used for the publication or communication of the project and in compliance with Chapter V of the GDPR.

Publication on digital platforms or social networks managed by third parties may entail further processing by the platform operators, who act in accordance with their respective privacy policies and terms of use.

## 13. Retention Period

Unpublished raw recordings will be retained for the time strictly necessary for the selection, editing and production of the project's promotional and dissemination materials, and, as a rule, for no longer than 24 months from their acquisition, subject to justified project needs, protection of rights or legal obligations.

Final published materials may remain available for the duration of the HEAT project and for the period necessary for the purposes of communication, dissemination, reporting, institutional archiving and documentation of the activities carried out, as a rule for no longer than 5 years

from the conclusion of the project, subject to additional retention obligations or a reasoned request for removal/restriction assessed by the Controller.

Any authorisations or releases collected will be retained for the time necessary to document the lawfulness of the processing and to protect the rights of the University and the data subjects.

## **14. Rights of the Data Subject**

Data subjects may exercise, in the cases and within the limits provided by the GDPR, the rights of access, rectification, erasure, restriction of processing, objection to processing and, where applicable, data portability.

In particular, the participant may object to the processing of their image on grounds relating to their particular situation, pursuant to Art. 21 GDPR. They may also request the removal or restriction of the use of images or videos that make them identifiable, within the applicable technical and legal limits, taking into account the possible prior dissemination of materials on third-party sites, channels or platforms.

Requests may be sent to the University of Cagliari by email to [privacy@unica.it](mailto:privacy@unica.it), by PEC to [protocollo@pec.unica.it](mailto:protocollo@pec.unica.it), or by post to: Università degli Studi di Cagliari – Settore protezione dati personali (privacy) e trasparenza – Via Università 40, 09124 Cagliari.

## **15. Complaint to the Supervisory Authority**

If the data subject considers that the processing of personal data infringes data protection law, they have the right to lodge a complaint with the Italian Data Protection Authority (Garante per la protezione dei dati personali), in accordance with the procedures indicated on the website [www.garanteprivacy.it](http://www.garanteprivacy.it), without prejudice to any other administrative or judicial remedy.

## **16. Updates to the Notice**

This notice may be updated in the event of organisational, technical, regulatory or project-related changes. The updated version will be made available on the HEAT project website and, where appropriate, through further communication channels.